



DUE DILIGENCE ADDENDUM



This form is only to be used if an inspection(s) in the Agreement of Sale is left blank, checked "no", or otherwise excluded.

This Addendum is part of the Agreement of Sale by and between

SELLER(S): _____

BUYER(S): _____

PROPERTY: _____

Buyer, at Buyer's sole expense, shall have until 11:59 p.m. Delaware time on _____ (or within fifteen (15) days of ratification/effective date if no date specified), which period is hereinafter referred to as the "Due Diligence Period", the right to investigate and inspect any or all components, systems and uses of the property that impact the Buyer's intended use of the property. Seller acknowledges that they have to the best of their knowledge completed a Sellers Disclosure of Real Property Condition Report which is made a part of this Agreement of Sale, or in the event a Sellers Disclosure of Real Property Condition Report was not completed because the transaction qualifies as exempt from the requirement of completing a Sellers Disclosure of Real Property Condition Report, the Seller has none the less disclosed all known latent or hidden defects relating to the property to the Buyer in writing prior to the signing of this addendum.

Seller shall make the Property accessible for inspection(s) and will have all utilities turned on. Neither Buyer, nor any agent or contractor(s) of Buyer, shall in any way excavate, penetrate or otherwise damage any part of the Property without the prior written consent of Seller, nor shall any furnishings, boxes, or personal property belonging to the Seller be moved or relocated unless absolutely necessary in connection with the inspection. Buyer and Seller shall have the right to be present during the inspection(s), and Buyer shall give Seller reasonable advance notice of the date and time of any inspection(s). Inspection reports shall be the property of the Buyer and shall not be shared with the Seller unless otherwise mutually agreed upon.

If in Buyer's sole discretion, the results of any "Due Diligence Period" inspections or investigations are unsatisfactory to Buyer for any reason, Buyer may terminate this Agreement by providing written notice to Seller prior to the expiration of the Due Diligence period. Upon such notice of termination, all parties agree to immediately execute the proper documentation to acknowledge termination of this Agreement of Sale. There shall then be no further obligation or liability of either party, Broker(s) or the Designated Agents(s) and all deposit money shall be returned to Buyer in accordance with the terms of this Agreement provided Buyer is not otherwise in default. Buyer and Seller agree that Broker(s)/Agent(s) does not guarantee, and will not be held responsible for, any person or company performing the inspection(s) pursuant to the terms of this Agreement and will not be responsible for the selection of any person or company chosen to perform any inspection(s). Failure by Buyer to notify the Seller in writing of Buyer's decision to void the Agreement of Sale prior to expiration of the "Due Diligence Period" shall mean the Buyer has waived this right and removed this Due Diligence contingency.

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Seller _____ Date _____

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Seller _____ Date _____

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Buyer _____ Date _____

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Buyer _____ Date _____